

Background

On October 26, 2023, Petitioner on his own behalf with co-Plaintiffs Ana Ramirez and minors Jefersson Rivas, Christofher Rivas, and Mayori Rivas filed a complaint against Defendant 1630 Clayton & 1650/1730 Pine Street Associates LLC for breach of contract, breach of implied warrant of habitability, nuisance, negligence, and intentional infliction of emotional distress. Minor suffered no medical injuries and sought no treatment.

At this time, Defendant has offered \$97,500.00 to resolve all claims. The majority of the resolution is to go to the parents, Matias Rivas Escobar and Ana Ramirez, given the nature of the varied damages. Of this total resolution, \$2,500 is allocated to Minor. Of this \$2,500, the only deduction is for attorneys' fees in the amount of \$625.00, or 25%. Minor therefore is to receive \$1,875.00.

Given the amount of the resolution, Petitioner is seeking the award to be paid to him, without bond, pursuant to Probate Code sections 3401-3502. The amount is clearly within the Code, although the Court has no representations that Petitioner is able to make the verification to the payor pursuant to Probate Code section 3401(c)(2). If Petitioner is unable to make such verified attestation, he will need to return to Court to seek alternate payment.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on December 17, 2025.

6. 9:00 AM CASE NUMBER: C23-02721
CASE NAME: MATIAS ESCOBAR VS. 1630 CLAYTON & 1650/1730 PINE STREET ASSOCIATES, LLC
***HEARING ON MINOR'S COMPROMISE RE: CHRISTOFHER RIVAS**
FILED BY: ESCOBAR , MATIAS RIVAS
TENTATIVE RULING:

Summary

Petitioner and Guardian Ad Litem Matias Rivas Escobar filed on December 17, 2025 a Petition for Approval of Compromise of Minor Christofher Rivas's ("Minor") Claim Against 1630 Clayton & 1650/1730 Pine Street Associates LLC ("Petition"). For the reasons stated below, the Court **grants** the Petition.

Background

On October 26, 2023, Petitioner on his own behalf with co-Plaintiffs Ana Ramirez and minors Jefersson Rivas, Christofher Rivas, and Mayori Rivas filed a complaint against Defendant 1630 Clayton & 1650/1730 Pine Street Associates LLC for breach of contract, breach of implied warrant of habitability, nuisance, negligence, and intentional infliction of emotional distress. Minor suffered no medical injuries and sought no treatment.

At this time, Defendant has offered \$97,500.00 to resolve all claims. The majority of the resolution is to go to the parents, Matias Rivas Escobar and Ana Ramirez, given the nature of the varied damages. Of this total resolution, \$2,500 is allocated to Minor. Of his \$2,500, the only deduction is for attorneys' fees in the amount of \$625.00, or 25%. Minor therefore is to receive \$1,875.00.

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Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on December 17, 2025.

7. 9:00 AM CASE NUMBER: C23-02721
CASE NAME: MATIAS ESCOBAR VS. 1630 CLAYTON & 1650/1730 PINE STREET ASSOCIATES, LLC
***HEARING ON MINOR'S COMPROMISE RE: JEFERSSON RIVAS**
FILED BY: ESCOBAR , MATIAS RIVAS
TENTATIVE RULING:

Summary

Petitioner and Guardian Ad Litem Matias Rivas Escobar filed on December 17, 2025 a Petition for Approval of Compromise of Minor Jefersson Rivas's ("Minor") Claim Against 1630 Clayton & 1650/1730 Pine Street Associates LLC ("Petition"). For the reasons stated below, the Court **grants** the Petition.

Background

On October 26, 2023, Petitioner on his own behalf with co-Plaintiffs Ana Ramirez and minors Jefersson Rivas, Christofher Rivas, and Mayori Rivas filed a complaint against Defendant 1630 Clayton & 1650/1730 Pine Street Associates LLC for breach of contract, breach of implied warrant of habitability, nuisance, negligence, and intentional infliction of emotional distress. Minor suffered no medical injuries and sought no treatment.

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